

recovery as if it were original work. After reviewing the documents submitted by both parties, the Court agrees that a reduction in hours is appropriate. [2 hours (\$750) → 1 hour (\$375)] Moreover, the substantial interactions between counsel and the plaintiff are hard to fathom, given the simple nature of the dispute and the quick resolution. [3.5 hours (\$2,211.50) → 1.75 hours (\$1,555.75)] There is substantial work billed that is clerical in nature or overblown for what it could possibly have entailed. [.4 hours (\$142.50) → 0 hours (\$0)] The Court does not understand why counsel was required for the vehicle surrender. Counsel states that a vehicle *inspection* may merit counsel attendance, but this was not a vehicle inspection. [4.4 hours (\$2,420) → 0 hours] Finally, the anticipated time for the reply briefing on this motion and a motion to tax costs (not to mention the excessive time spent on the initial motion itself) is not compensable. Counsel can recover only for reasonable time *actually* spent. Even the anticipated travel is far too speculative, given the practice of Southern California counsel regarding remote appearances. In reply, counsel only offered substantiation of 4 hours for reply, which still appears excessive considering the product and noted repetitive nature of these arguments (by GM as well). The Court will reduce to a reasonable amount. [20.7 hours (\$11,285.50) → 5 hours (\$1,875)]

Multiplier

There is no reason for *any* multiplier here. There is no showing that this work was complex, risky, or required counsel to forgo other work.

The Court agrees with GM's rationale and calculation for hours to be reduced, except the pre-engagement work. The Court will therefore reduce fees in the amount of \$13,003.75, for a total of \$9,349.75.

Costs

GM also objects to certain requested costs. Although the Court has concerns about the propriety of some of the costs in the Memorandum, no Motion to Tax Costs was filed within 15 days, as required by California Rule of Court 3.1700(b). Even if the Court were to construe the overlong pages of GM's brief as a Motion to Tax Costs, it was untimely. The clerk must, pursuant to Rule 3.1700(b)(4) enter the costs on the judgment.

Procedural Issues

Langston cited several unpublished superior court cases. These are absolutely unciteable. The only reason the Court can receive any of these is for demonstration of reasonable rates. All other citations—e.g. page 9 of Langston's reply brief—are in violation of California Rule of Court 8.1115.

Langston also filed a supplemental declaration as an attachment to the Reply brief. This is not appropriate, as it does not allow the Court to reasonably consider all of the papers.

GM's opposition brief exceeded the page limit. The final two pages address costs, which GM did not timely contest in any event, as stated above.

9. 9:00 AM CASE NUMBER: C25-02287
CASE NAME: CITY OF CONCORD VS. SEKK INVESTMENTS LLC
***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION**
FILED BY: CITY OF CONCORD
TENTATIVE RULING:

Plaintiff City of Concord seeks a Preliminary Injunction against Defendants Sekk Investments, LLC and Steven Pinza for violations on a property they own in Concord.

The basic facts at this stage in the proceedings—at least up until the point of the filing of this Motion for Preliminary Injunction—are uncontested. On March 30, 2023, after inspections pursuant to warrants, the City issued their first Notice of Violation on the subject real property located at 1751 Diane Court. There were seven relevant violations. On April 29, 2024, the City issued their second Notice of Violation on the subject real property. On May 29, 2025, the City issued a Notice and Order to Comply to Defendants. On July 23, 2025, the City issued another Notice and Order to Comply. On August 25, 2025, the City issued yet another Notice and Order to Comply to Defendants.

In 2025, the City again inspected the property. On September 4, 2025, the City served a Notice of Violation and Inspection Results for the Property related to these new inspections. Again, there were seven relevant violations. On October 15, 2025, Defendants are alleged to have dumped truckloads of garbage onto a public street. The City further alleges this was in retaliation for the City's actions.

Although Defendants submitted administrative appeal documents, they did not pay the fees requested by the City, either initially or after given notice of the need for additional fees.

Standard

The City seeks injunctive relief on its second, fourth, and fifth causes of action for violation of the Concord Municipal Code. (Code Civ. Pro. § 527.) “Where a governmental entity seeking to enjoin the alleged violation of an ordinance which specifically provides for injunctive relief establishes that it is reasonably probable it will prevail on the merits, a rebuttable presumption arises that the potential harm to the public outweighs the potential harm to the defendant. If the defendant shows that it would suffer grave or irreparable harm from the issuance of the preliminary injunction, the court must then examine the relative actual harms to the parties.” (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 72.) A showing of “substantial economic loss” will not suffice to show irreparable harm as long as a business may continue doing its business. (*Id.* at 75.)

Timeliness

Defendants first argument is that the City belied its need for a preliminary injunction by not filing immediately and by not seeking ex parte relief to advance the hearing. The delay was not substantial and in any event does not outweigh the City's demonstration of irreparable harm of *ongoing* damage. (*Nutro Prods., Inc. v. Cole Grain Co.* (1992) 3 Cal.App.4th 860, 866.)

The Declaration of Jeff Hughes

The core of Defendant's opposition is the Declaration of Jeff Hughes, to which the City objects. Most objections relate to foundation and hearsay. Although not all objections would be sustained, at least one objection to each and every paragraph objected to is valid. The Court therefore sustains objections to paragraphs 3(d), 5-17, and 18, as well as Figures 1-4. The Declaration contains conclusions of law, hearsay, and foundationless photographs. Although it is possible that Mr. Hughes could provide certain relevant testimony, this declaration fails entirely to support Defendants' arguments. In addition to the issues with the Declaration, it does not answer the *permitting* questions raised by the City. Defendants never actually rebut that their work was unpermitted. Without permits and inspections, it cannot be deemed compliant. (See Concord Municipal Code § 15.10.010; Cal. Code Regs., tit. 24, § 105.1 (California Building Code); Declaration of Thomas Davis.)

Merits

Defendants argue that because the City did not acknowledge their cross-complaint, the City failed to establish reasonably probability that it will prevail on the merits. In doing so, Defendants directly challenge counsel's candor. The Court finds no violations of the duty of candor. Defendants' cross-complaint does not appear relevant to the issues of this Preliminary Injunction. Indeed, Defendants themselves never explain how the cross-complaint is relevant. Its mere existence does not lessen the alleged harms. For the Court to understand why the cross-complaint—which appears at heart to be a general challenge on fee-collection by the City—affects this Preliminary Injunction, the Defendants would have to have drawn a connection, which they never do.

The City has made a *prima facie* case of code violations, substandard building conditions, irreparable harm to tenants. Defendants never directly challenge the City's arguments that the alleged violations are not and were not violations. Through the Declaration of Jeff Hughes, they have passing reference to the alleged conditions not being dangerous, but otherwise their *sole* arguments relate to timeliness, the *existence* of their cross-complaint (but never its merits) and their purported remediation. Unsupported statements regarding the conditions of the premises do not rebut the City's arguments. Defendants never even mention the illegal dumping violation.

Conclusion

At the end of the day, the City's contentions are, essentially, un rebutted. The Preliminary Injunction will be **granted**.

10. 9:00 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JAMES L. ARRASMITH, ESQ.
FILED BY:
TENTATIVE RULING:

The Motion is **granted**. Relieved counsel for Plaintiff is ordered to forward all required materials to Plaintiff or her next attorney.